



REPUBLIC OF KARAKALPAKSTAN

CONSTITUTION

OF THE TWELFTH CONVOCATION OF THE SUPREME COUNCIL OF THE REPUBLIC OF
KARAKALPAKSTAN

ADOPTED AT THE TWELFTH SESSION ON APRIL 9, 1993

(With amendments and additions introduced at the fifteenth session of the twelfth convocation of the Supreme Council of the Republic of Karakalpakstan on February 26, 1994, at the thirteenth session of the Jokargy Kenes of the Republic of Karakalpakstan of the first convocation on October 31, 1995, at the thirteenth session of the Jokargy Kenes of the Republic of Karakalpakstan of the first convocation on December 15, 1997, at the twelfth session of the Jokargy Kenes of the Republic of Karakalpakstan of the second convocation on November 12, 2003, at the fifteenth session of the Jokargy Kenes of the Republic of Karakalpakstan on June 27, 2014, at the twenty-sixth session of the Jokargy Kenes of the Republic of Karakalpakstan on June 29, 2019, and at the twenty-ninth session of the Jokargy Kenes of the Republic of Karakalpakstan on December 16, 2019)

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PREAMBLE

The people of the Republic of Karakalpakstan, solemnly proclaiming their commitment to the principles of human rights and state sovereignty, realizing their high responsibility before present and future generations, relying on the historical experience of developing Karakalpak statehood, affirming their loyalty to the ideas of democracy and social justice, recognizing the supremacy of universally accepted norms of international law, striving to ensure a decent life for the citizens of the republic, setting as their goal the establishment of a humane, democratic, law-governed state, and ensuring civil peace and national harmony, through their fully authorized representatives adopt this Constitution of the Republic of Karakalpakstan.

FIRST SECTION FUNDAMENTAL PRINCIPLES

CHAPTER I STATE SOVEREIGNTY

Article 1.

Karakalpakstan is a sovereign democratic republic within the Republic of Uzbekistan. The names of the state 'Republic of Karakalpakstan' and 'Karakalpakstan' are equivalent.

The mutual relations between the Republic of Uzbekistan and the Republic of Karakalpakstan are regulated by treaties and agreements concluded between the Republic of Uzbekistan and the Republic of Karakalpakstan within the framework of the Constitution of the Republic of Uzbekistan.

The Republic of Karakalpakstan has the right to secede from the Republic of Uzbekistan on the basis of a general referendum of the people of Karakalpakstan.

Article 2.

The state expresses the will of the people and serves its interests. State bodies and officials are accountable to society and citizens.

Article 3.

The Republic of Karakalpakstan independently resolves issues of administrative-territorial structure, determines the system of bodies of state power and administration, and conducts a policy consistent with the policy of the Republic of Uzbekistan.

The territory and borders of the Republic of Karakalpakstan are inviolable and may not be changed or divided.

Article 4.

The Karakalpak language and the Uzbek language shall be the state languages of the Republic of Karakalpakstan. The Republic of Karakalpakstan shall ensure respect for the languages, customs, and traditions of the nationalities and peoples residing within its territory and create conditions for their development.

Article 5.

The Republic of Karakalpakstan shall have its own state symbols — flag, emblem, and anthem — approved by law.

Article 6.

The capital of the Republic of Karakalpakstan is the city of Nukus.

CHAPTER II SOVEREIGNTY OF THE PEOPLE

Article 7.

The people shall be the sole source of state power.

State power in the Republic of Karakalpakstan shall be exercised in the interest of the people solely by the bodies authorized for this purpose through the Constitution of the Republic of Karakalpakstan and the laws adopted on its basis.

The usurpation of state power, the suspension or termination of the activities of government bodies in a manner not provided for by the Constitution, and the creation of new or parallel structures of power shall be considered unconstitutional actions and shall entail liability according to the law.

Article 8.

The people of Karakalpakstan, regardless of nationality, shall constitute the citizens of the Republic of Karakalpakstan.

Article 9.

The most significant issues of social and state life shall be submitted for public discussion and put to a popular vote (referendum). The procedure for holding a referendum shall be established by law.

Article 10.

Only the Jokargy Kenes of the Republic, elected by the people of Karakalpakstan, may act on their behalf. No part of society, political party, public association, movement, or individual person may act on behalf of the people of Karakalpakstan.

Article 11.

The system of state power in the Republic of Karakalpakstan is based on the principle of the separation of powers into legislative, executive, and judicial branches.

Article 12.

Social life in the Republic of Karakalpakstan shall develop on the basis of a diversity of political institutions, ideologies, and opinions.

No ideology may be established as an official state ideology.

Article 13.

In the Republic of Karakalpakstan, democracy is based on universal human principles, according to which the person, their life, freedom, honor, dignity, and other inalienable rights are the highest value.

Democratic rights and freedoms are protected by the Constitution and laws.

Article 14.

The State carries out its activities on the principles of social justice and legality, pursuing the interests of the well-being of the human being and society.

CHAPTER III SUPREMACY OF THE CONSTITUTION AND THE LAW

Article 15.

In the Republic of Karakalpakstan, the unconditional supremacy of the Constitutions and laws of the Republic of Uzbekistan and the Republic of Karakalpakstan is recognized. The State, its bodies, officials, public associations, and citizens shall act in accordance with the Constitution and the laws.

Article 16.

None of the provisions in this Constitution shall be interpreted to the detriment of the rights and interests of the Republic of Karakalpakstan. No law or other normative legal act may contradict the norms and principles of the Constitution.

CHAPTER IV FOREIGN POLICY OF THE REPUBLIC OF KARAKALPAKSTAN

Article 17.

International scientific, cultural, and foreign economic relations of the Republic of Karakalpakstan are carried out in accordance with the laws of the Republic of Uzbekistan and the Republic of Karakalpakstan.

PART TWO FUNDAMENTAL RIGHTS, FREEDOMS, AND DUTIES OF THE HUMAN BEING AND THE CITIZEN

CHAPTER V GENERAL PROVISIONS

Article 18.

All citizens of the Republic of Karakalpakstan possess equal rights and freedoms and are equal before the law, regardless of gender, race, nationality, language, religion, social origin, beliefs, personal or social status. Privileges may be established only by law and must comply with the principles of social justice.

Article 19.

The citizen of the Republic of Karakalpakstan and the state are bound by mutual rights and mutual responsibility. The rights and freedoms of citizens as established in the Constitution and laws are inviolable, and no one has the right to deprive or restrict them without a court decision.

Article 20.

The exercise of rights and freedoms by a citizen must not violate the lawful interests and freedoms of other persons, the state, and society.

CHAPTER VI CITIZENSHIP

Article 21.

In accordance with the establishment of a single citizenship in the Republic of Uzbekistan, every citizen of the Republic of Karakalpakstan is a citizen of the Republic of Uzbekistan. The grounds and procedure for acquiring and losing citizenship are determined by the Law on Citizenship of the Republic of Uzbekistan. Foreign citizens and stateless persons present on the territory of the Republic of Karakalpakstan are ensured rights and freedoms in accordance with the norms of international law. They shall perform the duties established by the Constitution and laws of the Republic of Karakalpakstan and the international treaties of the Republic of Uzbekistan.

CHAPTER VII PERSONAL RIGHTS AND FREEDOMS

Article 22.

The right to life is an inseparable right of every person. Encroachment upon it is the gravest crime.

Article 23.

Every person has the right to freedom and personal inviolability. No one shall be arrested or held in custody except on the basis of the law.

Article 24.

Every person accused of committing a crime is considered innocent until their guilt is proven in a public court proceeding and established in a lawful manner, during which they are provided with opportunities for their defense. No one may be subjected to torture, violence, or other cruel treatment or relations that humiliate human dignity. No one shall be subjected to medical or scientific experiments without their consent.

Article 25.

Every person has the right to protection from encroachment on their honor and dignity, from interference in their private life, and has the right to the inviolability of their home. No one has the right to enter a home, conduct a search or inspection, or violate the privacy of correspondence and telephone conversations, except in cases and procedures provided for by law.

Article 26.

A citizen of the Republic of Karakalpakstan, by virtue of being a citizen of the Republic of Uzbekistan, has the right to move freely throughout the territory of the Republic of Uzbekistan, as well as to enter and exit the Republic of Uzbekistan, except in cases restricted by law.

Article 27.

Everyone shall have the right to freedom of thought, speech, and conviction.

Everyone shall have the right to seek, receive, and disseminate any information, except for information directed against the existing constitutional order and other restrictions provided by law.

Freedom of opinion and expression may be restricted by law concerning state or other secrets.

Article 28.

All state bodies, public associations, and officials of the Republic of Karakalpakstan are obliged to provide citizens with the opportunity to familiarize themselves with documents, decisions, and other materials relating to their rights and interests.

Article 29.

Freedom of conscience is guaranteed for all; everyone has the right to profess any religion or none at all. The forced imposition of religious views is impermissible.

CHAPTER VIII POLITICAL RIGHTS

Article 30.

Citizens of the Republic of Karakalpakstan have the right to participate in the management of public and state affairs both directly and through their representatives. Such participation is carried out through self-government, the holding of referendums, and the democratic formation of state bodies.

Article 31.

Citizens have the right to exercise their social activity in the form of rallies, meetings, and demonstrations in accordance with the laws of the Republic of Karakalpakstan. Authorities have the right to suspend or prohibit these events solely for security reasons.

Article 32.

Citizens of the Republic of Karakalpakstan have the right to unite in trade unions, political parties, and other public associations, and to participate in mass movements.

No one may infringe upon the rights, freedoms, and dignity of persons constituting an opposition minority in political parties, public associations, mass movements, or representative bodies of authority.

Article 33.

Every person has the right, individually or jointly with others, to submit petitions, proposals, and complaints to the relevant state bodies, institutions, or representatives of the people.

Petitions, proposals, and complaints must be reviewed within the procedure and time limits established by law.

CHAPTER IX ECONOMIC AND SOCIAL RIGHTS**Article 34.**

Every person has the right to property. The confidentiality of bank deposits and the right of inheritance are guaranteed by law.

Article 35.

Every person has the right to work, to freely choose employment, to work under fair conditions, and to be protected from unemployment in the manner prescribed by law.

Forced labor is prohibited except in cases of serving a sentence imposed by a court or in other circumstances provided by law.

Article 36.

Employees have the right to paid rest. The duration of working hours and paid leave is determined by law.

Article 37.

Every person has the right to social security in old age, in case of loss of ability to work, loss of a breadwinner, and in other cases provided by law.

Pensions, allowances, and other types of social assistance may not be lower than the officially established minimum necessary for living.

Article 38.

Every person has the right to qualified medical care.

Article 39.

Every person has the right to education.

The state guarantees free general education. Schooling is under state supervision.

Article 40.

Every person is guaranteed freedom of scientific and technical creativity and the right to benefit from cultural achievements.

The state supports the cultural, scientific, and technical development of society.

CHAPTER X GUARANTEES OF HUMAN RIGHTS AND FREEDOMS**Article 41.**

The State shall ensure the rights and freedoms of citizens as established by the Constitution and laws.

Article 42.

Every person is guaranteed the right to judicial protection of their rights and freedoms, and the right to appeal to court against the unlawful actions of state bodies, officials, and public associations.

Article 43.

The rights of minors, persons with disabilities, and elderly persons living alone shall be protected by the State.

Article 44.

Women and men shall have equal rights.

CHAPTER XI DUTIES OF CITIZENS**Article 45.**

All citizens shall perform the duties established for them by the Constitution.

Article 46.

Citizens are obliged to observe the Constitution and laws, and to respect the rights, freedoms, honor, and dignity of others.

Article 47.

Citizens are obliged to preserve the historical, spiritual, and cultural heritage of the people of Karakalpakstan.

Cultural monuments shall be protected by the State.

Article 48.

Citizens are obliged to treat the natural environment with care.

Article 49.

Citizens are obliged to pay taxes and local fees established by law.

Article 50.

The defense of the Republic of Uzbekistan and the Republic of Karakalpakstan is the duty of every citizen of the Republic of Karakalpakstan.

Citizens are obliged to perform military or alternative service in the manner prescribed by law.

SECTION THREE SOCIETY AND THE INDIVIDUAL

CHAPTER XII ECONOMIC FOUNDATIONS OF SOCIETY

Article 51.

The basis of the economy of Karakalpakstan, aimed at developing market relations, is comprised of various forms of ownership.

The state, taking into account the priority of consumer rights, guarantees freedom of economic activity, entrepreneurship, and labor, as well as the equality and legal protection of all forms of ownership. Private property, along with other forms of ownership, is inviolable and protected by the state. An owner may be deprived of property only in cases and in the manner prescribed by law.

Article 52.

An owner, at their discretion, possesses, uses, and disposes of the property belonging to them. The use of property must not cause damage to the ecological environment or violate the rights and legally protected interests of citizens, legal entities, and the state.

Article 53.

Land, its subsoil, waters, flora and fauna, and other natural resources are national wealth; they must be used rationally and are protected by the state.

CHAPTER XIII PUBLIC ASSOCIATIONS

Article 54.

Trade unions, political parties, scientific societies, women's organizations, veterans' and youth organizations, creative unions, mass movements, and other associations of citizens registered in the manner prescribed by law are recognized as public associations in the Republic of Karakalpakstan.

Article 55.

The formation and activity of political parties and other public associations that aim to forcefully change the constitutional order, act against the sovereignty, integrity, and security of the Republic or the constitutional rights and freedoms of its citizens, advocate for war or social, national, racial, and religious hatred, or encroach upon the health and morality of the people, as well as militarized associations and political parties based on national or religious characteristics, are prohibited.

The formation of secret societies and associations is prohibited.

Article 56.

The state ensures the observance of the rights and legitimate interests of public associations and creates equal legal opportunities for their participation in public life.

Interference by public associations in the activities of state bodies and officials, as well as interference by state bodies and officials in the activities of public associations, is not permitted.

Article 57.

Trade unions express and protect the socio-economic rights and interests of employees. Membership in trade organizations is voluntary.

Article 58.

Political parties express the political will of various social strata and groups and participate in the formation of state authority through their democratically elected representatives. Political parties are required to provide open reports on the sources of financing for their activities to the Jokargy Kenes or its authorized body in the established manner.

Article 59.

Religious organizations and associations are separated from the state and are equal before the law. The state shall not interfere in the activities of religious associations.

Article 60.

The dissolution, prohibition, or restriction of the activities of public associations shall be carried out only on the basis of a court decision.

CHAPTER XIV FAMILY

Article 61.

The family is the primary unit of society and has the right to protection by society and the state.

Marriage is based on the free consent and equality of the parties.

Article 62.

Parents are obliged to maintain and raise their children until they reach the age of majority.

The state and society shall ensure the maintenance, upbringing, and education of orphaned children and children deprived of parental care, and shall encourage charitable activities concerning them.

Article 63.

Children are equal before the law regardless of their parents' origin or civil status.

Motherhood and childhood are protected by the state.

Article 64.

Adult, able-bodied children are obliged to care for their parents.

CHAPTER XV MASS MEDIA

Article 65.

Mass media are free and operate in accordance with the law. They are responsible for the accuracy of information in the established manner. Censorship is not permitted.

PART FOUR ADMINISTRATIVE-TERRITORIAL STRUCTURE OF THE REPUBLIC OF KARAKALPAKSTAN

CHAPTER XVI ADMINISTRATIVE-TERRITORIAL STRUCTURE OF THE REPUBLIC OF KARAKALPAKSTAN

Article 66.

The Republic of Karakalpakstan consists of districts, cities, towns, and villages.

Article 67.

The establishment and abolition of districts and cities, as well as the alteration of their boundaries, shall be carried out by the Jokargy Kenes of the Republic of Karakalpakstan.

PART FIVE ORGANIZATION OF STATE POWER

CHAPTER XVII THE JOKARGY KENES OF THE REPUBLIC OF KARAKALPAKSTAN

Article 68.

The Jokargy Kenes of the Republic of Karakalpakstan, which exercises legislative power, is the supreme state representative body.

Article 69.

The Jokargy Kenes of the Republic of Karakalpakstan consists of deputies elected from territorial electoral districts on a multi-party basis for a five-year term. Citizens of the Republic of Karakalpakstan who have reached the age of 25 by the day of the election have the right to be elected to the Jokargy Kenes of the Republic of Karakalpakstan. Requirements for candidates for deputies are determined by law.

Article 70.

The exclusive powers of the Jokargy Kenes of the Republic of Karakalpakstan include:

- 1) Adopting the Constitution of the Republic of Karakalpakstan, introducing amendments and additions to it;
- 2) Adopting the laws of the Republic of Karakalpakstan, introducing amendments and additions to them, and providing interpretations of the laws of the Republic of Karakalpakstan;
- 3) Adopting state strategic programs for economic and social development;
- 4) Electing the Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan and their deputy;
- 5) Forming the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan;
- 6) Appointing and dismissing the Chairperson of the Council of Ministers of the Republic of Karakalpakstan upon the recommendation of the Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan and with the consent of the President of the Republic of Uzbekistan;
- 7) Appointment and dismissal of the Deputy Chairmen and members of the Council of Ministers of the Republic of Karakalpakstan; the formation and abolition of ministries, state committees, and other state administration bodies of the Republic of Karakalpakstan;
- 8) Election of the Constitutional Oversight Committee of the Republic of Karakalpakstan, the Supreme Court of the Republic of Karakalpakstan on Civil Cases, the Supreme Court of the Republic of Karakalpakstan on Criminal Cases, and the Economic Court of the Republic of Karakalpakstan;
- 9) Appointment and dismissal of judges of inter-district, district, and city courts for civil and criminal cases;
- 10) Appointment and dismissal of the Prosecutor of the Republic of Karakalpakstan upon the proposal of the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan and with the consent of the Prosecutor General of the Republic of Uzbekistan;
- 11) Appointment and dismissal of the Chairman of the State Committee for Nature Protection of the Republic of Karakalpakstan;
- 12) Suspension and cancellation of decisions of local Kenges of people's deputies;
- 13) Regulation of issues regarding the administrative-territorial structure through laws;
- 14) Determination of the system and powers of republican and local state authority bodies;
- 15) Approval of the state budget of the Republic of Karakalpakstan and reports on its execution upon the proposal of the Council of Ministers of the Republic of Karakalpakstan;
- 16) Establishment of state awards and honorary titles of the Republic of Karakalpakstan;
- 17) Scheduling elections to the Jokargy Kenes of the Republic of Karakalpakstan and local representative bodies; formation of the Central Election Commission;
- 18) Submission of proposals to the Constitutional Court of the Republic of Uzbekistan regarding the compliance of acts issued by the higher state authority and administration bodies of the Republic of Uzbekistan with the Constitution of the Republic of Uzbekistan;
- 19) Exercise of other powers provided for in this Constitution.

Article 71.

The activities of the Jokargy Kenes of the Republic of Karakalpakstan are carried out in the manner prescribed by the Constitution of the Republic of Karakalpakstan and the Regulations of the Jokargy Kenes.

Article 72.

A session of the Jokargy Kenes of the Republic of Karakalpakstan is considered competent if at least two-thirds of the total number of all deputies participate in its work.

Article 73.

The Chairperson of the Council of Ministers of the Republic of Karakalpakstan and their deputies, ministers, heads of state committees, heads of other state administrative bodies, the Chairperson of the Constitutional Oversight Committee of the Republic of Karakalpakstan, the Chairperson of the Supreme Court for Civil Cases of the Republic of Karakalpakstan, the Chairperson of the Supreme Court for Criminal Cases of the Republic of Karakalpakstan, the Chairperson of the Economic Court of the Republic of Karakalpakstan, and the Prosecutor of the Republic of Karakalpakstan may participate in the sessions of the Jokargy Kenes of the Republic of Karakalpakstan and its bodies.

Article 74.

After the expiration of its term of office, the Jokargy Kenes of the Republic of Karakalpakstan continues its work until the newly elected Jokargy Kenes begins its activities.

The first session of the Jokargy Kenes after elections is convened by the Central Election Commission no later than two months after the elections.

Article 75.

The right of legislative initiative in the Jokargy Kenes of the Republic of Karakalpakstan belongs to the deputies of the Jokargy Kenes, the Council of Ministers of the Republic of Karakalpakstan, the Constitutional Oversight Committee of the Republic of Karakalpakstan, the Supreme Court for Civil Cases of the Republic of Karakalpakstan, the Supreme Court for Criminal Cases of the Republic of Karakalpakstan, the Economic Court of the Republic of Karakalpakstan, and the Prosecutor of the Republic of Karakalpakstan.

Article 76.

The Jokargy Kenes of the Republic of Karakalpakstan adopts laws, resolutions, and other acts.

A majority vote of all deputies of the Jokargy Kenes of the Republic of Karakalpakstan is required to adopt a law.

Publication of the laws of the Republic of Karakalpakstan and other normative acts of the Jokargy Kenes in the press is a mandatory condition for their application.

Article 77.

The Jokargy Kenes of the Republic of Karakalpakstan elects committees and commissions from among its deputies to prepare draft laws, to preliminarily review and prepare issues to be submitted to the Jokargy Kenes, and to oversee the implementation of laws and other decisions of the Jokargy Kenes.

When necessary, the Jokargy Kenes of the Republic of Karakalpakstan forms permanent or temporary deputy, investigative, and other commissions.

The powers and procedures of the committees and commissions of the Jokargy Kenes of the Republic of Karakalpakstan are determined by law.

Article 78.

Expenses related to the parliamentary activities of deputies of the Jokargy Kenes of the Republic of Karakalpakstan are reimbursed in the prescribed manner.

Deputies of the Jokargy Kenes of the Republic of Karakalpakstan and its bodies working on a permanent basis may not occupy another paid position or engage in entrepreneurial activity during their term of office.

Article 79.

A deputy of the Jokargy Kenes of the Republic of Karakalpakstan shall enjoy the right of immunity. They may not be brought to criminal responsibility, arrested, or subjected to administrative penalties imposed by a court without the consent of the Jokargy Kenes of the Republic of Karakalpakstan.

CHAPTER XVIII THE CHAIRMAN OF THE JOKARGY KENES OF THE REPUBLIC OF KARAKALPAKSTAN**Article 80.**

The Chairman of the Jokargy Kenes of the Republic of Karakalpakstan is the highest-ranking official of the Republic of Karakalpakstan.

The Chairman of the Jokargy Kenes of the Republic of Karakalpakstan shall be elected by the Jokargy Kenes of the Republic of Karakalpakstan from among the deputies of the Jokargy Kenes of the Republic of Karakalpakstan by secret ballot for the term of office of the Jokargy Kenes of the Republic of Karakalpakstan, for no more than two consecutive terms.

Article 81.

The Chairman of the Jokargy Kenes of the Republic of Karakalpakstan:

- 1) ensures the coordinated interaction of the highest legislative and executive bodies of the Republic of Karakalpakstan;
- 2) presents reports to the Jokargy Kenes of the Republic of Karakalpakstan on the situation in the Republic and other important issues;
- 3) organizes the implementation of the laws of the Republic of Uzbekistan and other decisions of the Oliy Majlis, decrees and other acts of the President of the Republic of Uzbekistan; organizes the supervision over the execution of the laws of the Republic of Karakalpakstan and the resolutions of the Jokargy Kenes;
- 4) presents to the Jokargy Kenes of the Republic of Karakalpakstan candidates for election to the positions of the Deputy Chairman of the Jokargy Kenes and the chairs of the committees and commissions of the Jokargy Kenes of the Republic of Karakalpakstan;
- 5) presents to the Jokargy Kenes of the Republic of Karakalpakstan a candidate for the position of the Chairman of the Council of Ministers of the Republic of Karakalpakstan with the consent of the President of the Republic of Uzbekistan;
- 6) appoints and dismisses district and city khokims (governors) upon the recommendation of the Chairman of the Council of Ministers of the Republic of Karakalpakstan, subject to subsequent confirmation by the relevant Councils of People's Deputies;
- 7) presents to the Jokargy Kenes of the Republic of Karakalpakstan candidates for the positions of the chair and members of the Constitutional Oversight Committee of the Republic of Karakalpakstan with the consent of the Presidium of the Jokargy Kenes;
- 8) submits to the Jokargy Kenes of the Republic of Karakalpakstan, with the consent of the President of the Republic of Uzbekistan, candidacies for the positions of the Chairperson and judges of the Supreme Court of the Republic of Karakalpakstan on Civil Affairs, the Chairperson and judges of the Supreme Court of the Republic of Karakalpakstan on Criminal Affairs, the Chairperson and judges of the Economic Court of the Republic of Karakalpakstan, as well as judges of inter-district, district, and city courts for civil and criminal affairs;
- 9) submits to the Jokargy Kenes of the Republic of Karakalpakstan, with the consent of the Presidium of the Jokargy Kenes, the candidacy for the position of the Chairperson of the State Committee of the Republic of Karakalpakstan for Nature Protection;
- 10) exercises general leadership over the preparation of issues to be submitted for consideration by the Jokargy Kenes; convenes sessions of the Jokargy Kenes and, together with the chairpersons of committees and commissions, forms proposals for its agenda;
- 11) organizes the activities of the Jokargy Kenes of the Republic of Karakalpakstan and its Presidium, presides over their meetings, signs the laws of the Republic of Karakalpakstan and other acts adopted by the Jokargy Kenes of the Republic of Karakalpakstan and its Presidium, directs and coordinates the work of the committees and commissions of the Jokargy Kenes of the Republic of Karakalpakstan;
- 12) presents nominations for state awards of the Republic of Karakalpakstan and honorary titles of the Republic of Karakalpakstan;
- 13) initiates issues regarding the pardon of convicted citizens;
- 14) organizes public discussions of draft laws and other important issues of state life;

15) exercises other powers provided for by existing laws.

The Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan has the right to submit issues within their competence for consideration by the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan.

Article 82.

The Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan issues orders on issues within their competence.

Article 83.

The Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan may be recalled by the Jokargy Kenes of the Republic of Karakalpakstan in the event of a violation of the Constitution and laws of the Republic of Karakalpakstan.

The decision on recall is adopted by a majority of at least two-thirds of the total number of deputies of the Jokargy Kenes of the Republic of Karakalpakstan, upon the initiative of at least one-third of the deputies, taking into account the conclusion of the Constitutional Oversight Committee of the Republic of Karakalpakstan.

The Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan may terminate their powers upon personal application, as well as in the event of an inability to fulfill their duties due to health conditions confirmed by the conclusion of a State Medical Commission formed by the Jokargy Kenes of the Republic of Karakalpakstan.

The decision to terminate the powers of the Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan is adopted by a majority vote of the total number of deputies of the Jokargy Kenes of the Republic of Karakalpakstan.

In such cases, an election for a new Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan shall be held within 10 days.

CHAPTER XIX THE PRESIDUM OF THE JOKARGY KENES OF THE REPUBLIC OF KARAKALPAKSTAN

Article 84.

To organize the activities of the Jokargy Kenes of the Republic of Karakalpakstan and exercise other powers, the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan shall be formed. The Presidium of the Jokargy Kenes of the Republic of Karakalpakstan includes the Chairperson of the Jokargy Kenes, their deputy, the chairpersons of the committees and commissions of the Jokargy Kenes, and the leaders of party groups in the Jokargy Kenes of the Republic of Karakalpakstan.

Article 85.

The Presidium of the Jokargy Kenes of the Republic of Karakalpakstan:

- 1) prepares proposals on the agenda and procedure of work for the sessions of the Jokargy Kenes;
- 2) hears reports on the ongoing work of the committees and commissions of the Jokargy Kenes and information regarding the implementation of the laws of the Republic of Karakalpakstan and decisions of the Jokargy Kenes;
- 3) organizes the planning of work on draft laws;
- 4) preliminarily reviews draft laws and other documents upon the proposal of the Chairperson of the Jokargy Kenes;
- 5) discusses proposals and opinions expressed by deputies at the sessions of the Jokargy Kenes and adopts relevant decisions on them;
- 6) confers state awards of the Republic of Karakalpakstan and grants honorary titles of the Republic of Karakalpakstan;
- 7) during the period between sessions of the Jokargy Kenes, upon the recommendation of the Chairperson of the Council of Ministers of the Republic of Karakalpakstan, appoints and dismisses deputy chairpersons of the Council of Ministers and members of the Council of Ministers of the Republic of Karakalpakstan, establishes and abolishes ministries, state committees, and other state administration bodies of the Republic of Karakalpakstan, subsequently submitting resolutions on these matters for approval by the Jokargy Kenes of the Republic of Karakalpakstan;
- 8) submits to the Jokargy Kenes of the Republic of Karakalpakstan a candidacy for the position of the Procurator of the Republic of Karakalpakstan, in agreement with the Procurator General of the Republic of Uzbekistan;
- 9) during the period between sessions, gives consent to holding a deputy of the Jokargy Kenes accountable in cases and procedures established by law, as well as to the termination of an employment contract with them at the initiative of the employer;
- 10) considers other issues related to the activities of the Jokargy Kenes and the effective exercise of powers by deputies.

The Presidium of the Jokargy Kenes of the Republic of Karakalpakstan issues resolutions on matters within its competence, which shall be published in the established manner.

CHAPTER XX THE COUNCIL OF MINISTERS OF THE REPUBLIC OF KARAKALPAKSTAN

Article 86.

The Council of Ministers of the Republic of Karakalpakstan — the Government of the Republic of Karakalpakstan — is the supreme executive and administrative body of state authority of the Republic of Karakalpakstan.

Article 87.

The Council of Ministers of the Republic of Karakalpakstan is formed by the Jokargy Kenes of the Republic of Karakalpakstan. The Council of Ministers of the Republic of Karakalpakstan directs the effective functioning of the economy and the social and spiritual spheres; ensures the execution of the laws of the Republic of Uzbekistan and other decisions of the Oliy Majlis of the Republic of Uzbekistan, decrees, resolutions and orders of the President of the Republic of Uzbekistan, resolutions and orders of the Cabinet of Ministers of the Republic of Uzbekistan, laws of the Republic of Karakalpakstan and other decisions of the Jokargy Kenes of the Republic of Karakalpakstan, and resolutions of the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan.

The Council of Ministers of the Republic of Karakalpakstan suspends and repeals the acts of the state administration bodies of the Republic of Karakalpakstan, as well as the khokims of districts and cities.

Article 88.

The Council of Ministers of the Republic of Karakalpakstan is headed by the Chairman, who is appointed by the Jokargy Kenes upon the recommendation of the Chairman of the Jokargy Kenes of the Republic of Karakalpakstan and in agreement with the President of the Republic of Uzbekistan.

The Chairman of the Council of Ministers of the Republic of Karakalpakstan is, by virtue of his office, a member of the Cabinet of Ministers of the Republic of Uzbekistan.

The Chairman of the Council of Ministers of the Republic of Karakalpakstan:

- 1) directs the activities of the Government and takes measures for the effective exercise of its powers;
- 2) submits to the Jokargy Kenes of the Republic of Karakalpakstan, and in the period between sessions to the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan, candidacies for the appointment and dismissal of deputy chairmen of the Council of Ministers and members of the Council of Ministers of the Republic of Karakalpakstan;
- 3) distributes duties among the deputy chairmen of the Council of Ministers and subsequently submits them for approval to the Presidium of the Council of Ministers;
- 4) submits proposals to the Jokargy Kenes of the Republic of Karakalpakstan, and in the period between sessions to the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan, on the creation and abolition of ministries, state committees, and other state administration bodies of the Republic of Karakalpakstan;
- 5) submits to the Chairman of the Jokargy Kenes of the Republic of Karakalpakstan candidacies for the appointment and dismissal of khokims of districts and cities;
- 6) presides over the meetings of the Council of Ministers and its Presidium;
- 7) ensures collegiality in the activities of the Council of Ministers;
- 8) adopts decisions on individual issues of state and economic management that do not require consideration at meetings of the Council of Ministers and its Presidium;
- 9) exercises other powers established by law within the scope of its competence.

Article 89.

The Council of Ministers of the Republic of Karakalpakstan is responsible and accountable to the Jokargy Kenes of the Republic of Karakalpakstan.

The Council of Ministers of the Republic of Karakalpakstan shall report on its activities to the Jokargy Kenes of the Republic of Karakalpakstan at least once a year.

The Council of Ministers of the Republic of Karakalpakstan shall resign its powers before the newly elected Jokargy Kenes of the Republic of Karakalpakstan.

Article 90.

The Council of Ministers of the Republic of Karakalpakstan, on the basis of and in execution of the laws of the Republic of Uzbekistan and other decisions of the Oliy Majlis of the Republic of Uzbekistan, decrees, resolutions and ordinances of the President of the Republic of Uzbekistan, resolutions and ordinances of the Cabinet of Ministers of the Republic of Uzbekistan, laws of the Republic of Karakalpakstan and other decisions of the Jokargy Kenes of the Republic of Karakalpakstan, and resolutions of the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan, shall issue resolutions and ordinances binding for execution throughout the territory of the Republic of Karakalpakstan.

Article 91.

The powers of the Council of Ministers of the Republic of Karakalpakstan, its procedure of activity, and the relations of the Council of Ministers of the Republic of Karakalpakstan with other state bodies of the Republic of Karakalpakstan shall be determined by the law of the Republic of Karakalpakstan.

CHAPTER XXI FOUNDATIONS OF STATE POWER IN THE LOCALITIES**Article 92.**

The Councils of People's Deputies, headed by khokims, are the representative bodies of authority in districts and cities (except for cities of district subordination) that resolve issues within their competence based on the interests of the state and citizens.

Article 93.

The jurisdiction of local authorities includes the following issues:

- ensuring legality, law and order, and the security of citizens;
- issues of economic, social, and cultural development of the territories;
- formation and execution of the local budget, establishment of local taxes and fees, and formation of extra-budgetary funds;
- management of the local municipal economy;
- protection of the environment and ensuring the registration of acts of civil status;
- adoption of normative acts that do not contradict the Constitution and laws of the Republic of Karakalpakstan, and the exercise of other powers.

Article 94.

Local government bodies shall implement the laws of the Republic of Uzbekistan, other decisions of the Oliy Majlis of the Republic of Uzbekistan, decrees, resolutions, and orders of the President of the Republic of Uzbekistan, resolutions and orders of the Cabinet of Ministers of the Republic of Uzbekistan, laws of the Republic of Karakalpakstan and other decisions of the Jokargy Kenes of the Republic of Karakalpakstan, resolutions of the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan, and resolutions and orders of the Council of Ministers of the Republic of Karakalpakstan, and shall participate in the discussion of issues of republican and local significance.

Decisions of higher bodies adopted within the scope of their powers are mandatory for execution by lower bodies.

The term of office for Councils of People's Deputies and khokims is 5 years.

Article 95.

In the respective territory, the khokim of a district or city shall lead the representative and executive authorities.

Article 96.

The khokims of districts and cities shall be appointed and dismissed by the Chairman of the Jokargy Kenes of the Republic of Karakalpakstan upon the recommendation of the Chairman of the Council of Ministers of the Republic of Karakalpakstan and shall be confirmed by the relevant Councils of People's Deputies.

The khokims of cities under district jurisdiction shall be appointed and dismissed by the district khokim and confirmed by the district Council of People's Deputies.

Article 97.

The khokim of a district or city shall exercise their powers based on the principles of individual leadership and shall be personally responsible for the decisions and actions of the bodies they lead.

The organization of the activities of khokims and local Councils of People's Deputies, the scope of their powers, and the procedure for electing local Councils of People's Deputies shall be regulated by law.

Article 98.

The khokim, within the scope of the powers granted to them, shall adopt decisions that are mandatory for execution by all enterprises, institutions, organizations, associations, as well as officials and citizens in the relevant territory.

Article 99.

In settlements, villages, as well as in city mahallas, the bodies of local self-government shall be citizens' assemblies, which elect a chairperson (aksakal) and their advisors for a term of 2.5 years.

The procedure for electing local self-government bodies, the organization of their activities, and the scope of their powers shall be regulated by law.

CHAPTER XXII JUDICIAL POWER OF THE REPUBLIC OF KARAKALPAKSTAN**Article 100.**

The judicial power of the Republic of Karakalpakstan functions independently from the legislative and executive powers, political parties, and other public associations.

Article 101.

The judicial system of the Republic of Karakalpakstan consists of the Supreme Court of the Republic of Karakalpakstan on Civil Affairs, the Supreme Court of the Republic of Karakalpakstan on Criminal Affairs, and the Economic Court of the Republic of Karakalpakstan, elected for a term of five years, as well as inter-district, district, and city courts on civil and criminal affairs appointed for the same term. The organization and procedure of the courts' activities are determined by law. The establishment of extraordinary courts is not permitted.

Article 102.

The Supreme Court of the Republic of Karakalpakstan on Civil Affairs is the highest judicial body in the field of civil litigation and has the right to exercise judicial supervision over the activities of inter-district courts on civil affairs.

Article 103.

The Supreme Court of the Republic of Karakalpakstan on Criminal Affairs is the highest judicial body in the field of criminal and administrative litigation and has the right to exercise judicial supervision over the activities of district and city courts on criminal affairs.

Article 104.

Economic disputes arising in the economic sphere and in the course of its management between enterprises, institutions, and organizations based on various forms of ownership, as well as entrepreneurs, shall be resolved by the Economic Court of the Republic of Karakalpakstan within the limits of its powers.

Article 105.

Judges are independent and subject only to the law. Any interference in the activities of judges regarding the administration of justice is impermissible and shall entail liability in accordance with the law. The immunity of judges is guaranteed by law. Judges may not be senators or deputies of representative bodies of state power.

Judges may not be members of political parties, participate in political movements, or engage in any other type of paid activity, except for scientific and pedagogical activities.

A judge may be dismissed from office before the expiration of their term only on the grounds specified by law.

Article 106.

In all courts, the consideration of cases is conducted openly. Hearing cases in closed sessions is permitted only in instances established by law.

Article 107.

Acts of the judicial power are mandatory for all state bodies, public associations, enterprises, institutions, organizations, officials, and citizens.

Article 108.

In the Republic of Karakalpakstan, court proceedings are conducted in the Karakalpak and Uzbek languages or in the language of the majority of the population in a given locality. Participants in the proceedings who do not speak the language in which the court proceedings are conducted are ensured the right to fully acquaint themselves with the case materials and participate in court proceedings through an interpreter, as well as the right to speak in court in their native language.

Article 109.

The accused is ensured the right to defense. The right to receive professional legal assistance is guaranteed at any stage of the judicial process. To provide legal assistance to citizens, enterprises, organizations, and institutions, the advocacy operates. The formation and procedure of the advocacy's activities are determined by law.

CHAPTER XXIII ELECTORAL SYSTEM**Article 110.**

Citizens of the Republic of Karakalpakstan have the right to elect and be elected to representative bodies. Each voter has one vote. The right to vote, equality, and freedom of expression of will are guaranteed by law.

Elections to the Jokargy Kenes of the Republic of Karakalpakstan and to district and city representative bodies of state power are held in the year their constitutional term of office expires — on the first Sunday of the third ten-day period of December. Elections are held on the basis of universal, equal, and direct suffrage by secret ballot. Citizens of the Republic of Karakalpakstan who have reached the age of eighteen have the right to vote.

Citizens recognized by a court as legally incapable, as well as persons held in places of imprisonment by a court sentence, cannot be elected and do not participate in elections. In any other cases, direct or indirect restriction of the electoral rights of citizens is not permitted.

A citizen of the Republic of Karakalpakstan cannot be a deputy in more than two representative bodies simultaneously.

The procedure for holding elections is determined by law.

CHAPTER XXIV CONSTITUTIONAL CONTROL**Article 111.**

Constitutional control in the Republic of Karakalpakstan is exercised by the Constitutional Control Committee of the Republic of Karakalpakstan. The Constitutional Control Committee is elected by the Jokargy Kenes of the Republic of Karakalpakstan from among specialists in the fields of politics and law, consisting of a Chairman of the Constitutional Control Committee, a Deputy Chairman, and members of the committee. The term of office for persons elected to the Constitutional Control Committee is five years.

The duties of the Chairperson, Deputy Chairperson, and members of the Constitutional Supervision Committee may not be performed concurrently with a deputy mandate.

Persons elected to the Constitutional Supervision Committee may not simultaneously be part of the bodies whose acts are under the supervision of the Committee.

Persons elected to the Constitutional Supervision Committee shall be independent in the performance of their duties and shall be subordinate only to the Constitution of the Republic of Karakalpakstan.

Article 112.

The Constitutional Supervision Committee of the Republic of Karakalpakstan:

- 1) upon the instruction of the Jokargy Kenes of the Republic of Karakalpakstan, submits to it conclusions on the compliance of the laws of the Republic of Karakalpakstan and other acts submitted for consideration to the Jokargy Kenes of the Republic of Karakalpakstan with the Constitution of the Republic of Karakalpakstan;
- 2) upon the proposal of at least one-fifth of the deputies of the Jokargy Kenes of the Republic of Karakalpakstan or the Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan, submits to the Jokargy Kenes of the Republic of Karakalpakstan conclusions on the compliance of laws and other acts adopted by the Jokargy Kenes of the Republic of Karakalpakstan with the Constitution of the Republic of Karakalpakstan;
- 3) upon the instruction of the Jokargy Kenes of the Republic of Karakalpakstan, submits to it conclusions on the compliance of the resolutions of the Presidium of the Jokargy Kenes of the Republic of Karakalpakstan and the orders of the Chairperson of the Jokargy Kenes with the Constitution and laws of the Republic of Karakalpakstan;
- 4) upon the instruction of the Jokargy Kenes of the Republic of Karakalpakstan, or upon the proposals of at least one-fifth of the deputies of the Jokargy Kenes of the Republic of Karakalpakstan or the Chairperson of the Jokargy Kenes of the Republic of Karakalpakstan, submits to the Jokargy Kenes of the Republic of Karakalpakstan conclusions on the compliance of the resolutions and orders of the Council of Ministers of the Republic of Karakalpakstan with the Constitution and laws of the Republic of Karakalpakstan.

Furthermore, the Constitutional Supervision Committee has the right to submit, on its own initiative, conclusions on the compliance of the acts of the higher bodies of state power and administration of the Republic of Karakalpakstan with the Constitution and laws of the Republic of Karakalpakstan.

A conclusion of the Committee may be overturned only by a decision of the Jokargy Kenes of the Republic of Karakalpakstan adopted by a two-thirds majority vote of the total number of deputies of the Jokargy Kenes of the Republic of Karakalpakstan.

The organization and procedure of activity of the Constitutional Supervision Committee of the Republic of Karakalpakstan shall be determined by the Law on the Constitutional Supervision Committee of the Republic of Karakalpakstan.

CHAPTER XXV THE PROSECUTOR'S OFFICE

Article 113.

The Prosecutor of the Republic of Karakalpakstan and their subordinate prosecutors shall ensure the supervision of the strict and uniform execution of laws throughout the territory of the Republic of Karakalpakstan.

Article 114.

The Prosecutor of the Republic of Karakalpakstan is appointed and dismissed by the Jokargy Kenes of the Republic of Karakalpakstan in agreement with the Prosecutor General of the Republic of Uzbekistan.

Prosecutors of districts and cities are appointed and dismissed by the Prosecutor General of the Republic of Uzbekistan upon the recommendation of the Prosecutor of the Republic of Karakalpakstan.

The term of office for the Prosecutor of the Republic of Karakalpakstan, as well as for district and city prosecutors, is five years.

Article 115.

The prosecution authorities of the Republic of Karakalpakstan exercise their powers independently of any state bodies, public associations, and officials, being subordinate only to the law.

Prosecutors shall suspend their membership in political parties and other public associations pursuing political goals for the duration of their term of office.

The organization, powers, and operational procedures of the prosecution authorities are determined by law.

Article 116.

The establishment and activity of private or cooperative organizations, public associations, and their branches that independently perform operational-search, investigative, or other special tasks to combat crime within the territory of the Republic of Karakalpakstan is prohibited.

Public associations and citizens may assist law enforcement agencies in protecting the rule of law, legal order, and the rights and freedoms of citizens.

CHAPTER XXVI FINANCE AND BUDGET**Article 117.**

The state budget of the Republic of Karakalpakstan includes the republican and local budgets.

Article 118.

The allocation of revenues and expenditures of the state budget of the Republic of Karakalpakstan between the republican and local budgets is determined by the laws of the Republic of Karakalpakstan.

PART SIX PROCEDURE FOR AMENDING THE CONSTITUTION

Article 119.

Amendments to the Constitution of the Republic of Karakalpakstan are introduced by a law adopted by at least two-thirds of the total number of deputies of the Jokargy Kenes of the Republic of Karakalpakstan, or by a referendum of the Republic of Karakalpakstan.

Article 120.

The Jokargy Kenes of the Republic of Karakalpakstan has the right to adopt a law on introducing amendments to the Constitution within six months after the corresponding proposal has been submitted.

If the Jokargy Kenes of the Republic of Karakalpakstan rejects the proposal to amend the Constitution, it may be resubmitted no earlier than one year later.

CONSTITUTION OF THE REPUBLIC OF KARAKALPAKSTAN

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